

Rise Up Roofing and Construction, Inc.
2182 S El Camino Real, Suite 202
Oceanside, CA 92054.
Tel. (442) 266-2443ext. 2
Fax. (442) 266-2422
www.riseuprac.com



(License#1096492 B/C39/C46)

A Notice of Cancellation may be sent to Rise Up Roofing and Construction, Inc. at the business address listed above or by email at accountant@riseuprac.com

HOME IMPROVEMENT CONTRACT

This contract (“Contract”) is between Bryce Kirklen (the “Client”) and Rise Up Roofing and Construction, Inc. Edith Guerrero (the “Contractor”).

Project Address:

28663 Miller Road, Valley Center, CA

The contract is signed and dated September 22th, 2026.

Salesperson: Marc Sarellano

You are entitled to a completely filled in copy of this agreement, signed by both you and the Contractor, before any work may be started.

AGREEMENT

A. Licensing: The Contractor warrants that the Contractor currently holds a valid license, #1096492, under the laws of the State of California to perform the work. The work performed will be done so in compliance with all applicable local, state, or federal statutes and regulations.

B. Scope of Work/Payment:

The Client is hiring the Contractor to do the following:
Complete 31-Square Concrete Tile Roof Installation

- a. Description of the Project and description of the significant materials to be used and equipment to be installed:

Rise Up Roofing & Construction, Inc. will complete the following roofing, preventative maintenance, exterior waterproofing, and interior repair work at the property:
Scope of Work — Complete Tile Roof Installation

- Rise Up Roofing & Construction Inc. will provide all labor, roofing materials, standard equipment, supervision, and project coordination required to complete the installation of the 31-square concrete tile roofing system.

Roofing Materials

- Furnish Eagle Roofing Products –Bel Air 303 Sierra Madre concrete roof tile, along with the standard roofing materials required for a complete professional installation.

Underlayment

- Furnish and install new roofing underlayment throughout the complete roof area, including proper laps, transitions, penetrations, valleys, and critical waterproofing details.

Flashings & Sheet Metal

- Furnish and install required standard roofing flashings and metal components, including pipe and penetration flashings.

Tile Installation

- Professionally install approximately 31 squares of Eagle Bel Air 303 Sierra Madre concrete tile, including layout, alignment, fastening, cutting, and fitting at penetrations, walls, valleys, hips, and ridges.

Hip & Ridge

- Furnish and install matching hip and ridge tile, including transitions, fastening, and weatherproofing for a clean finished appearance.

Labor & Equipment

- Provide professional roofing labor, standard jobsite equipment, supervision, and project coordination necessary to complete the roofing scope described above.
- Dump, Disposal & Cleanup
- Remove roofing debris generated by our work. Dump and disposal fees are included, followed by final jobsite cleanup and a magnetic sweep of accessible areas where appropriate.

Important Conditions

- Pricing is based on the existing roof structure being in serviceable condition. Concealed structural damage, deteriorated wood, framing repairs, engineering, permit fees, or other additional work are not included unless specifically stated in writing. Any additional work discovered after the project begins will be reviewed with the owner before proceeding and documented through a written change order.

- b. **Approximate Start Date:** October 16th, 2026.
- c. **Substantial Commencement of Work:** October 19th, 2026.
- d. **Approximate Completion Date:** October 22th, 2026.
- e. **List of documents incorporated into this Agreement:**
 - i. **Exhibit A – Notice of Cancellation Form**
 - ii. **2Exhibit B – Extra Work or Change Order Form (if applicable)**
- f. **Note About Extra Work and Change Orders.**
 - i. Extra Work and Change Orders become part of the contract once the order is prepared in writing and signed by the parties prior to the commencement of work covered by the new order in substantially the same form as attached as **Exhibit B** hereto. The order must describe the scope of the extra work or change, the cost to be added to or subtracted from the contract, and the effect the order will have on the schedule of progress payments.
 - ii. Client may not require a contractor to perform extra or change-order work without providing
 - iii. Any Extra work or Change Order shall not be enforceable against Client unless it also identifies all of the following in writing prior to the commencement of work covered by the order:
 - 1. The scope of work encompassed by the order.
 - 2. The amount to be added or subtracted from the contract.
 - 3. The effect the change order will have on the progress of payments or the completion date.
 - iv. The Contractor's failure to comply with the requirements of this paragraph does not preclude the recovery of compensation for work performed based upon legal or equitable remedies designed to prevent unjust enrichment.
written authorization prior to the commencement of work covered by the new change order.
- g. **Contract Price:** \$31,000.00
- h. **Finance Charge:** N/A
- i. **Downpayment:** \$1,000.00

THE DOWNPAYMENT MAY NOT EXCEED \$1,000 .00 OR 10 PERCENT OF THE CONTRACT PRICE, WHICHEVER IS LESS.

- j. **Payment Schedule:**
 - i. Schedule of Progress Payments: Contractor will complete the deliverables and/or complete specified milestones, and Client will pay Contractor upon acceptance of Deliverables or timely completion of a milestone, according to the following schedule:
 - 1. Initial Payment \$1,000 (Contract execution / project scheduling / material coordination)
 - 2. Progress Payment \$9,300 (Start of roofing work / initial installation stage)
 - 3. Progress Payment \$9,300 (Underlayment, waterproofing & flashing stage completed)
 - 4. Final Payment \$11,400 (Project completion and final walkthrough)

Total : \$31,000

Client Initial Here _____

- k. **Payment Terms:** Payment shall be made to the Contractor via cash, cashier's check, or money order. If any invoices are not paid when due, this could result in suspension or termination of the project. If the Client fails

to pay for the Services when due, the Contractor reserves the right to treat such failure as a breach of this Contract. Any legal fees associated with such will be the Client's responsibility.

i. **Invoices:** The Contractor will invoice the Client on the dates listed in the Payment Schedule section. The Client agrees to pay the invoice with the amount owed within **UPON COMPLETION**.

ii. **Late Payments:** If the Client fails to pay the Contractor on time per agreed upon payment schedule, the Contractor may suspend work until delinquent payments are brought current. If payments are delinquent for more than **4 days**, then the Client will be subjected to a late fee of **\$25.00**.

iii. **Expenses:** Client shall pay to the Contractor any expenses incurred by the Contractor in the provision of services under this Agreement, including, but not limited to **any extra materials needed** no later than **2 days** after receipt is provided.

iv. **Lien Release:** Upon satisfactory payment being made for any portion of the work performed, the Contractor, prior to any further payment being made, shall furnish to the Client a full and unconditional release from any potential lien claimant claim or mechanics lien authorized pursuant to Sections 8400 and 8404 of the California Civil Code for that portion of the work for which payment has been made.

v. **Refund Policy:** 1.6.2(a) No Refunds: Services completed as described in this contract are not subject to refunds. The Client will not be reimbursed for services cancelled once work has begun. All sales are final.

Client Initial Here _____

C. Commercial General Liability, Excess Umbrella, and Auto Insurance:

- i. Rise Up Roofing and Construction, Inc., carries commercial general liability, excess umbrella, and auto car insurance written by PACIFIC UNITED INSURANCE SERVICES. You can reach out to them at (619) 274-8144 to request a certificate of insurance.

D. Workers' Compensation Insurance.

- i. Rise Up Roofing and Construction, Inc. carries workers' compensation insurance for all employees. written by PACIFIC UNITED INSURANCE SERVICES you can reach out them at (619)-274-8144 to request a certificate of insurance.

E. MECHANICS LIEN WARNING:

Anyone who helps improve your property, but who is not paid, may record what is called a mechanic's lien on your property. A mechanics lien is a claim, like a mortgage or home equity loan, made against your property and recorded with the county recorder.

Even if you pay your contractor in full, unpaid subcontractors, suppliers, and laborers who helped to improve your property may record mechanics liens and sue you in court to foreclose the lien. If a court finds the lien is valid, you could be forced to pay twice or have a court officer sell your home to pay the lien. Liens can also affect your credit.

To preserve their right to record a lien, each subcontractor and material supplier must provide you with a document called a 'Preliminary Notice.' This notice is not a lien. The purpose of the notice is to let you know that the person who sends you the notice has the right to record a lien on your property if he or she is not paid.

BE CAREFUL. The Preliminary Notice can be sent up to 20 days after the subcontractor starts work or the supplier provides material. This can be a big problem if you pay your contractor before you have received the Preliminary Notices.

You will not get Preliminary Notices from your prime contractor or from laborers who work on your project. The law assumes that you already know they are improving your property.

PROTECT YOURSELF FROM LIENS. You can protect yourself from liens by getting a list from your contractor of all the subcontractors and material suppliers that work on your project. Find out from your contractor when these subcontractors started work and when these suppliers' delivered goods or materials. Then wait 20 days, paying

attention to the Preliminary Notices you receive.

PAY WITH JOINT CHECKS. One way to protect yourself is to pay with a joint check. When your contractor tells you it is time to pay for the work of a subcontractor or supplier who has provided you with a Preliminary Notice, write a joint check payable to both the contractor and the subcontractor or material supplier.

For other ways to prevent liens, visit CSLB's Internet Web site at www.cslb.ca.gov or call CSLB at 800 -321-CSLB (2752).

REMEMBER, IF YOU DO NOTHING, YOU RISK HAVING A LIEN PLACED ON YOUR HOME. This can mean that you may have to pay twice or face the forced sale of your home to pay what you owe.

F. Information about the Contractors' State License Board (CSLB):

CSLB is the state consumer protection agency that licenses and regulates construction contractors.

Contact CSLB for information about the licensed contractor you are considering, including information about disclosable complaints, disciplinary actions, and civil judgments that are reported to CSLB.

Use only licensed contractors. If you file a complaint against a licensed contractor within the legal deadline (usually four years), CSLB has authority to investigate the complaint. If you use an unlicensed contractor, CSLB may not be able to help you resolve your complaint. Your only remedy may be in civil court, and you may be liable for damages arising out of any injuries to the unlicensed contractor or the unlicensed contractor's employees.

For more information:

Visit CSLB's Internet Web site at www.cslb.ca.gov

Call CSLB at 800-321-CSLB (2752)

Write CSLB at P.O. Box 26000, Sacramento, CA 95826.

G. Representations:

- a. **Authority to Sign:** Each party promises to the other party that it has the authority to enter into this Contract and to perform all of its obligations under this Contract.
- b. **Client will Review Work:** The Client promises to review the work product, to be reasonably available to the Contractor if the Contractor has questions regarding this project, and to provide timely feedback and decisions.

H. General:

- a. **Signatures:** The Client and the Contractor must sign the document either electronically or in hardcopy. If this document is signed in hard copy, it must be returned to the Contractor for valid record. Electronic signatures count as originals for all purposes.
- b. **Compliance with Laws:** Contractor must comply with all provisions of law applicable to this Contract.

I. Term and Termination: This contract ends on the date **indicated on page 2, item d of this contract**, or unless the Client or the Contractor ends the contract before that time. If one of the parties chooses to end the Contract prior to project completion, the Client is responsible for paying for all work and costs incurred up until that date.

J. Bond. Client has the right to require the Contractor to have a performance and payment bond.

The Parties hereto agree to the foregoing as evidenced by their signatures below.

Date:

Rise Up Roofing and Construction, Inc.

By: Edith Guerrero

Title: Project Manager

Date:

Signature of Client

Right to Cancel Addendum

Three-Day Right to Cancel

The law requires that the contractor give you a notice explaining your right to cancel. Initial the checkbox if the contractor has given you a “Notice of the Three-day Right to Cancel”

Initial Here:

Five-Day Right to Cancel (For Senior Citizens, age 65+)

The law requires that the contractor give you a notice explaining your right to cancel. Initial the checkbox if the contractor has given you a “Notice of the Three-day Right to Cancel”

Initial Here:

Notice of the Three-day Right to Cancel

I. Three-Day Right to Cancel

The Client has the right to cancel this contract within three business days. You may cancel by e-mailing, mailing, faxing, or delivering a written notice to the Contractor at the Contractor's place of business by midnight of the third business day after you receive a signed and dated copy of the contract that includes this notice. Include your name, your address, and the date you received the signed copy of the contract and this notice.

If you cancel, the contractor must return to you anything you paid within 10 days of receiving the notice of cancellation. For your part, you must make available to the contractor at your residence, in substantially as good condition as you received them, goods delivered to you under this contract or sale. Or you may, if you wish, comply with the contractor's instructions on how to return the goods at the contractor's expense and risk. If you do make the goods available to the contractor and the contractor does not pick them up within 20 days of the date of your notice of cancellation, you may keep them without any further obligation. If you fail to make the goods available to the contractor, or if you agree to return the goods to the contractor and fail to do so, then you remain liable for performance of all obligations under the contract.

Date:

Exhibit A

Notice of Cancellation (Three Days)

Date of original contract or transaction:

You may cancel this transaction, without any penalty or obligation, within three business days from the above date.

If you cancel, any property traded in, any payments made by you under the contract or sale, and any negotiable instrument executed by you will be returned within 10 days following receipt by the seller of your cancellation notice, and any security interest arising out of the transaction will be canceled.

If you cancel, you must make available to the contractor at your residence, in substantially as good condition as when received, any goods delivered to you under this contract or sale, or you may, if you wish, comply with the instructions of the seller regarding the return shipment of the goods at the seller's expense and risk.

If you do make the goods available to the seller and the seller does not pick them up within 20 days of the date of your notice of cancellation, you may retain or dispose of the goods without any further obligation. If you fail to make the goods available to the seller, or if you agree to return the goods to the seller and fail to do so, then you remain liable for performance of all obligations under the contract.

To cancel this transaction, mail or deliver a signed and dated copy of this cancellation notice, or any other written notice, or send an email to, Rise Up Roofing and Construction, Inc., at 2182 S El Camino Real #202, Oceanside, CA 92054, not later than midnight _____ (cancellation deadline).

I hereby cancel this transaction.

(Enter Date of Cancellation)

Signature: _____

Printed Name: _____

Date: _____

Notice of the Five-day Right to Cancel

I. Five-Day Right to Cancel (for senior citizens aged 65+)

The Client has the right to cancel this contract within five business days. You may cancel by e-mailing, mailing, faxing, or delivering a written notice to the Contractor at the Contractor's place of business by midnight of the fifth business day after you received a signed and dated copy of the contract that includes this notice. Include your name, your address, and the date you received the signed copy of the contract and this notice.

If you cancel, the contractor must return to you anything you paid within 10 days of receiving the notice of cancellation. For your part, you must make available to the contractor at your residence, in substantially as good condition as you received them, goods delivered to you under this contract or sale. Or you may, if you wish, comply with the contractor's instructions on how to return the goods at the contractor's expense and risk. If you do make the goods available to the contractor and the contractor does not pick them up within 20 days of the date of your notice of cancellation, you may keep them without any further obligation. If you fail to make the goods available to the contractor, or if you agree to return the goods to the contractor and fail to do so, then you remain liable for performance of all obligations under the contract.

Date:

Signature of Client

Exhibit A (2)

Notice of Cancellation (Five Days)

Date of original contract or transaction:

You may cancel this transaction, without any penalty or obligation, within three business days from the above date.

If you cancel, any property traded in, any payments made by you under the contract or sale, and any negotiable instrument executed by you will be returned within 10 days following receipt by the seller of your cancellation notice, and any security interest arising out of the transaction will be canceled.

If you cancel, you must make available to the contractor at your residence, in substantially as good condition as when received, any goods delivered to you under this contract or sale, or you may, if you wish, comply with the instructions of the seller regarding the return shipment of the goods at the seller's expense and risk.

If you do make the goods available to the seller and the seller does not pick them up within 20 days of the date of your notice of cancellation, you may retain or dispose of the goods without any further obligation. If you fail to make the goods available to the seller, or if you agree to return the goods to the seller and fail to do so, then you remain liable for performance of all obligations under the contract.

To cancel this transaction, mail or deliver a signed and dated copy of this cancellation notice, or any other written notice, or send an email to, Rise Up Roofing and Construction, Inc., at 2182 S El Camino Real #202, Oceanside, CA 92054, not later than midnight _____ (cancellation deadline).

I hereby cancel this transaction.

(Enter Date of Cancellation)

Signature: _____

Printed Name: _____

Date: _____

Exhibit B
Extra Work or Change Order Form

Extra Work or Change Order NO. [____] for Home Improvement Contract

This Extra Work or Change Order ("CO") is entered into between Rise up Roofing and Construction, Inc., with business address: 2182 S El Camino Real #202, Oceanside Ca 92054, ("Contractor") and ----- ("Client") and is effective as of _____ ("CO Effective Date").

This CO is governed by and incorporated into the **Home Improvement Contract**, executed between the above-listed parties on _____ (the "**Contract**"). Capitalized terms not defined in this CO will have the meanings assigned to them in the Contract. The terms of this CO are limited to the scope of this CO and are not applicable to any other COs that may be executed under the Contract. This CO and the Contract represent the parties' entire agreement relating to the subject of this CO and supersede all prior or contemporaneous agreements, whether written or oral, on that subject.

You are entitled to a completely filled in copy of this agreement, signed by both you and the contractor, before any work may be started.

1. Project Information.

Contractor Project Manager: Edith Guerrero
Email: edith@riseuprac.com
Phone: (760) 802-2103
License Number: Contractor warrants that Contractor currently holds a valid license, #1096492, under the laws of the State of California to perform the work. Work performed will be done so in compliance with all applicable local, state, or federal statutes and regulations.

2. Term. Unless terminated earlier in accordance with the termination provisions in the Contract, this CO will end when Contractor has completed the Services (as defined below), which in no event will be later than _____ [date], and Client has accepted the Services.

3. Description of the Project and Description of the Significant Materials to be Used and Equipment to be Installed. The Client is hiring Contractor to do the following:

Contractor will provide the Services at _____ [location]

4. Contract Price: Cost to be added or subtracted from the Contract: (a) will be added or (b) will be subtracted from the original contract price of _____. The new contract total, including this CO, is _____.

5. Finance Charge : N/A

6. Downpayment: \$1,000

THE DOWNPAYMENT MAY NOT EXCEED \$1,000 OR 10 PERCENT OF THE CONTRACT PRICE,WHICHEVER IS LESS.

The schedule of progress payments must specifically describe each phase of work, including the type and amount of work or services scheduled to be supplied in each phase, along with the amount of each proposed progress payment.

IT IS AGAINST THE LAW FOR A CONTRACTOR TO COLLECT PAYMENT FOR WORK NOT YET COMPLETED, OR FOR MATERIALS NOT YET DELIVERED. HOWEVER, A CONTRACTOR MAY REQUIRE A DOWNPAYMENT.

Client Initial Here _____

8. Project Dates.

Approximate Start Date: October 16th, 2026.

Substantial Commencement of Work: October 19th, 2026.

Approximate Completion Date: October 22th, 2026.

9. Note About Extra Work and Change Orders:

Extra Work and Change Orders become part of the contract once the order is prepared in writing and signed by the parties prior to the commencement of work covered by the new change order. The order must describe the scope of the extra work or change, the cost to be added to or subtracted from the contract, and the effect the order will have on the schedule of progress payments.

10. Effect on Original Project Schedule:

- A. **Bond**. Client has the right to require the Contractor to have a performance and payment bond.

The Parties hereto agree to the foregoing as evidenced by their signatures below.

Date:

Signature of Contractor

Rise Up Roofing and Construction, Inc.

By:

Title:

Date:

Signature of Client

Name

Right to Cancel Addendum

Three-Day Right to Cancel

The law requires that the contractor give you a notice explaining your right to cancel. Initial the checkbox if the contractor has given you a "Notice of the Three-day Right to Cancel"

Initial Here:

Five-Day Right to Cancel (For Senior Citizens, age 65+)

The law requires that the contractor give you a notice explaining your right to cancel. Initial the checkbox if the contractor has given you a "Notice of the Three-day Right to Cancel"

Initial Here: